

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB740 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Chris Kannady

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 740

By: Daniels of the Senate

and

Kannady of the House

FLOOR SUBSTITUTE

An Act relating to child sexual abuse; creating the
Cindy Clemishire Act; creating Trey's Law;
prohibiting the concealing of details relating to
certain claims; requiring confidentiality of certain
identifying information; making prohibitions
applicable to agreements entered into on certain
date; providing exceptions; amending 22 O.S. 2021,
Section 40.3A, which relates to reports of sexual
crimes; modifying scope of reporting requirement
exception; amending 22 O.S. 2021, Section 152, as
last amended by Section 1, Chapter 115, O.S.L. 2025
(22 O.S. Supp. 2025, Section 152), which relates to
criminal procedure; authorizing the prosecution of
sexual crimes against children to be brought at any
time; providing for noncodification; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

Sections 4 and 5 of this act shall be known and may be cited as
the "Cindy Clemishire Act".

1 SECTION 2. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 Section 3 of this act shall be known and may be cited as "Trey's
4 Law".

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 3020 of Title 12, unless there
7 is created a duplication in numbering, reads as follows:

8 A. Notwithstanding any other provision of law, any provision of
9 a settlement agreement that has the purpose or effect of concealing
10 the details relating to a claim of child sexual abuse, as defined in
11 Section 843.5 of Title 21 of the Oklahoma Statutes, or child sexual
12 exploitation, as defined in Section 1-1-105 of Title 10A of the
13 Oklahoma Statutes, and including such offenses set forth in Title 21
14 of the Oklahoma Statutes, is void and unenforceable as contrary to
15 the public policy of this state. Provided, however, that
16 identifying information concerning a victim of child sexual abuse or
17 child sexual exploitation shall be deemed and maintained as
18 confidential.

19 B. Subject to subsection C of this section, subsection A of
20 this section shall apply to an agreement entered into before, on, or
21 after the effective date of this act.

22 C. An individual or entity may not enforce or attempt to
23 enforce an agreement or a provision of an agreement described by
24

1 subsection A of this section and entered into before the effective
2 date of this act unless:

3 1. A cause of action related to the agreement was initiated
4 prior to the effective date of this act; and

5 2. The individual or entity obtains a declaratory judgment that
6 is final and not subject to appeal and declares that the agreement
7 or provision is enforceable.

8 SECTION 4. AMENDATORY 22 O.S. 2021, Section 40.3A, is
9 amended to read as follows:

10 Section 40.3A. A. Any physician, surgeon, resident, intern,
11 physician assistant, registered nurse, or any other health care
12 professional examining, attending, or treating the victim of what
13 appears to be or is reported by the victim to be rape, rape by
14 instrumentation, or forcible sodomy, as defined in Section 1111,
15 1111.1 or 888 of Title 21 of the Oklahoma Statutes or any form of
16 sexual assault, shall not be required to report any incident of what
17 appears to be or is reported to be such crimes if:

18 1. Committed upon a person who is over the age of eighteen (18)
19 years; ~~and~~

20 ~~2. The person~~ and is not an incapacitated adult; or

21 2. Committed between minors, as revealed during the course of a
22 medical history review, without evidence or a report of coercion,
23 exploitation, threat, or intimidation.

1 B. Any physician, surgeon, resident, intern, physician
2 assistant, registered nurse, or any other health care professional
3 examining, attending, or treating a victim shall be required to
4 report any incident of what appears to be or is reported to be rape,
5 rape by instrumentation, forcible sodomy, or any form of sexual
6 assault, if requested to do so either orally or in writing by the
7 victim and shall be required to inform the victim of the victim's
8 right to have a report made. A requested report of any incident
9 shall be promptly made orally or by telephone to the nearest law
10 enforcement agency in the county wherein the sexual assault occurred
11 or, if the location where the sexual assault occurred is unknown,
12 the report shall be made to the law enforcement agency nearest to
13 the location where the injury is treated.

14 C. In all cases of what appears to be or is reported to be
15 rape, rape by instrumentation, forcible sodomy, or any form of
16 sexual assault, the physician, surgeon, resident, intern, physician
17 assistant, registered nurse, or any other health care professional
18 examining, attending, or treating the victim of what appears to be
19 such crimes, shall clearly and legibly document the incident and
20 injuries observed and reported, as well as any treatment provided or
21 prescribed.

22 D. In all cases of what appears to be or is reported to be
23 rape, rape by instrumentation, forcible sodomy, or any form of
24 sexual assault, the physician, surgeon, resident, intern, physician

1 assistant, registered nurse, or any other health care professional
2 examining, attending, or treating the victim of what appears to be
3 rape, rape by instrumentation, forcible sodomy, or any form of
4 sexual assault, shall refer the victim to sexual assault and victim
5 services programs, including providing the victim with twenty-four-
6 hour statewide telephone communication service established by
7 Section 18p-5 of Title 74 of the Oklahoma Statutes.

8 E. Every physician, surgeon, resident, intern, physician
9 assistant, registered nurse, or any other health care professional
10 making a report of rape, rape by instrumentation, forcible sodomy,
11 or any form of sexual assault pursuant to this section or examining
12 such victims to determine the likelihood of such crimes, and every
13 hospital or related institution in which the victims were examined
14 or treated shall, upon the request of a law enforcement officer
15 conducting a criminal investigation into the case, provide to the
16 officer copies of the results of the examination or copies of the
17 examination on which the report was based, and any other clinical
18 notes, X-rays, photographs, and other previous or current records
19 relevant to the case.

20 SECTION 5. AMENDATORY 22 O.S. 2021, Section 152, as last
21 amended by Section 1, Chapter 115, O.S.L. 2025 (22 O.S. Supp. 2025,
22 Section 152), is amended to read as follows:

23 Section 152. A. Prosecutions for the crimes of bribery,
24 embezzlement of public money, bonds, securities, assets or property

1 of the state or any county, school district, municipality or other
2 subdivision thereof, or of any misappropriation of public money,
3 bonds, securities, assets or property of the state or any county,
4 school district, municipality or other subdivision thereof,
5 falsification of public records of the state or any county, school
6 district, municipality or other subdivision thereof, and conspiracy
7 to defraud the State of Oklahoma or any county, school district,
8 municipality or other subdivision thereof in any manner or for any
9 purpose shall be commenced within seven (7) years after the
10 discovery of the crime; provided, however, prosecutions for the
11 crimes of embezzlement or misappropriation of public money, bonds,
12 securities, assets or property of any school district, including
13 those relating to student activity funds, or the crime of
14 falsification of public records of any independent school district,
15 the crime of criminal conspiracy, the crime of embezzlement pursuant
16 to Sections 1451 through 1461 of Title 21 of the Oklahoma Statutes,
17 the crime of False Personation or Identity Theft pursuant to
18 Sections 1531 through 1533.3 of Title 21 of the Oklahoma Statutes,
19 the financial exploitation of a vulnerable adult pursuant to
20 Sections 843.1, 843.3 and 843.4 of Title 21 of the Oklahoma
21 Statutes, or Medicaid fraud pursuant to Section 1005 of Title 56 of
22 the Oklahoma Statutes, shall be commenced within five (5) years
23 after the discovery of the crime.

1 B. Prosecutions for criminal violations of any state income tax
2 laws shall be commenced within five (5) years after the commission
3 of such violation.

4 C. 1. Prosecutions for sexual crimes against children,
5 specifically rape or forcible sodomy, sodomy, lewd or indecent
6 proposals or acts against children, involving minors in pornography
7 pursuant to Section 886, 888, 1111, 1111.1, 1113, 1114, 1021.2,
8 1021.3, 1040.12a or 1123 of Title 21 of the Oklahoma Statutes, any
9 offense prohibited by Section 843.5 of Title 21 of the Oklahoma
10 Statutes, sexual abuse of a vulnerable adult pursuant to Section
11 843.1 of Title 21 of the Oklahoma Statutes, child trafficking
12 pursuant to Section 866 of Title 21 of the Oklahoma Statutes,
13 nonconsensual dissemination of private sexual images pursuant to
14 Section 1040.13b of Title 21, and failure to report abuse or neglect
15 pursuant to Section 1-2-101 of Title 10A of the Oklahoma Statutes
16 ~~shall~~ may be commenced ~~by the forty-fifth birthday of the alleged~~
17 ~~victim~~ at any time after the commission of the offense. Any offense
18 for which the prosecution is not time-barred upon the effective date
19 of this act shall be subject to the provisions of this subsection.

20 Prosecutions for such crimes committed against victims eighteen (18)
21 years of age or older shall be commenced within twenty (20) years
22 after the discovery of the crime. As used in this paragraph,
23 "discovery" means the date that a physical or sexually related crime
24 involving a victim eighteen (18) years of age or older is reported

1 to a law enforcement agency. Any offense for which the prosecution
2 is not time-barred upon the effective date of this act shall be
3 retroactively subject to the provisions of this subsection.

4 2. However, prosecutions for the crimes listed in paragraph 1
5 of this subsection may be commenced at any time after the commission
6 of the offense if:

7 a. physical evidence is collected and preserved that is
8 capable of being tested to obtain a profile from
9 deoxyribonucleic acid (DNA), and

10 b. probable cause as to the identity of the offender is
11 subsequently established through the use of a DNA
12 profile using evidence listed in subparagraph a of
13 this paragraph, or

14 c. the accused person has provided a confession or
15 admission related to the crime.

16 3. No prosecution under this subsection shall be based upon the
17 memory of the victim that has been recovered through psychotherapy
18 unless there is some evidence independent of such repressed memory.

19 4. Any person who knowingly and willfully makes a false claim
20 pursuant to this subsection or a claim that the person knows lacks
21 factual foundation may be reported to local law enforcement for
22 criminal investigation and, upon conviction, shall be guilty of a
23 felony.
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1 D. Prosecutions for criminal violations of any provision of the
2 Oklahoma Wildlife Conservation Code shall be commenced within three
3 (3) years after the commission of such offense.

4 E. Prosecutions for the crime of criminal fraud or workers'
5 compensation fraud pursuant to Section 1541.1, 1541.2, 1662 or 1663
6 of Title 21 of the Oklahoma Statutes shall commence within three (3)
7 years after the discovery of the crime, but in no event greater than
8 seven (7) years after the commission of the crime.

9 F. Prosecution for the crime of false or bogus check pursuant
10 to Section 1541.1, 1541.2, 1541.3 or 1541.4 of Title 21 of the
11 Oklahoma Statutes shall be commenced within five (5) years after the
12 commission of such offense.

13 G. Prosecution for the crime of solicitation for murder in the
14 first degree pursuant to Section 701.16 of Title 21 of the Oklahoma
15 Statutes shall be commenced within seven (7) years after the
16 discovery of the crime. For purposes of this subsection,
17 "discovery" means the date upon which the crime is made known to
18 anyone other than a person involved in the solicitation.

19 H. In all other cases a prosecution for a public offense must
20 be commenced within three (3) years after its commission.

21 I. Prosecution for the crime of accessory after the fact must
22 be commenced within the same statute of limitations as that of the
23 felony for which the person acted as an accessory.

1 J. Prosecution for the crime of arson pursuant to Section 1401,
2 1402, 1403, 1404 or 1405 of Title 21 of the Oklahoma Statutes shall
3 be commenced within seven (7) years after the commission of the
4 crime.

5 K. Prosecutions for criminal violations in which a deadly
6 weapon is used to commit a felony or prosecutions for criminal
7 violations in which a deadly weapon is used in an attempt to commit
8 a felony shall be commenced within seven (7) years after the
9 commission of the crime.

10 L. Prosecutions for the crime of human trafficking pursuant to
11 Section 748 of Title 21 of the Oklahoma Statutes shall be commenced
12 within three (3) years after discovery of the crime. For purposes
13 of this subsection, "discovery" means the date upon which the crime
14 is reported to a law enforcement agency.

15 SECTION 6. This act shall become effective November 1, 2026.

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